



INDIAN POLITY

PRESIDING OFFICERS OF RAJYA SABHA

MODULE – 64



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CHAIRMAN OF RAJYA SABHA

- 1 The presiding officer of the Rajya Sabha is known as the Chairman.



- 2 The **Vice-President of India** is the ex-officio Chairman of the Rajya Sabha.
- 3 During any period when the Vice-President acts as President or discharges the functions of the President, he does not perform the duties of the office of the Chairman of Rajya Sabha.
- 4 The Chairman of the Rajya Sabha can **be removed from his office only** if he is removed from the office of the Vice-President.

CHAIRMAN OF RAJYA SABHA

Special position of Speaker

- The Speaker decides whether a bill is a money bill or not and his decision on this question is final.
- The Speaker presides over a joint sitting of two Houses of Parliament
- Unlike the Speaker (who is a member of the House), the Chairman is not a member of the House

Similarity with Speaker

- As a presiding officer, there are similarities between the two offices.
- Like the Speaker, the Chairman also cannot vote in the first instance. He too can cast a vote in the case of an equality of votes.
- The Vice-President cannot preside over a sitting of the Rajya Sabha as its Chairman when a resolution for his removal is under consideration.

However, he can be present and speak in the House and can take part in its proceedings, without voting, even at such a time while the Speaker can vote in the first instance when a resolution for his removal is under consideration of the Lok Sabha.

CHAIRMAN OF RAJYA SABHA



- 5 As in the case of the Speaker, the salaries and allowances of the Chairman are also fixed by the Parliament.
- 6 They are **charged on the Consolidated Fund of India** and thus are not subject to the annual vote of Parliament.
- 7 During any period when the Vice-President **acts as President or discharges the functions of the President**, he is not entitled to any salary or allowance payable to the Chairman of the Rajya Sabha.
- 8 But, he is paid the salary and allowance of the President during such a time.

DEPUTY CHAIRMAN OF RAJYA SABHA



***Harivansh, the Deputy
Chairman of Rajya Sabha***

- 1** The Deputy Chairman is elected by the Rajya Sabha itself from amongst its members.
- 2** Whenever the office of the Deputy Chairman falls vacant, the Rajya Sabha elects another member to fill the vacancy.
- 3** The Deputy Chairman vacates his office in any of the following three cases:
 - If he **ceases to be a member** of the Rajya Sabha
 - If he **resigns by writing** to the Chairman
 - If he is **removed by a resolution** passed by a majority of all the members of the Rajya Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

DEPUTY CHAIRMAN OF RAJYA SABHA

- 4 The Deputy Chairman performs the duties of the Chairman's office when it is **vacant or when the Vice-President acts as President** or discharges the functions of the President.
- 5 He also acts as the Chairman when the latter is **absent** from the sitting of the House.
- 6 In both the cases, he has all the powers of the Chairman.
- 7 It should be emphasised here that the Deputy Chairman is not subordinate to the Chairman. He is directly responsible to the Rajya Sabha.
- 8 Like the Chairman, the Deputy Chairman, while presiding over the House, cannot vote in the first instance; he can only exercise a **casting vote in the case of a tie**.
- 9 Further, when a resolution for the removal of the Deputy Chairman is under consideration of the House, he **cannot preside over a sitting of the House**, though he may be present.

DEPUTY CHAIRMAN OF RAJYA SABHA



- 10** When the Chairman presides over the House, the Deputy Chairman is like any other ordinary member of the House.
- 11** He can speak in the House, participate in its proceedings and vote on any question before the House.
- 12** Like the Chairman, the Deputy Chairman is also entitled to a regular salary and allowance.
- 13** They are fixed by Parliament and are charged on the Consolidated Fund of India.

PANEL OF VICE-CHAIRPERSONS OF RAJYA SABHA

- 1 Under the Rules of Rajya Sabha, the Chairman nominates from amongst the members a panel of vice-chairpersons.
- 2 Any one of them can preside over the House in the **absence of the Chairman or the Deputy Chairman**.
- 3 When a member of the panel of vice-chairpersons is also not present, any other person as determined by the House acts as the Chairman.
- 4 It must be emphasised here that a member of the panel of vice-chairpersons cannot preside over the House, when the office of the Chairman or the Deputy Chairman is vacant.
- 5 During such time, **the Chairman's duties are to be performed by such member of the House as the President may appoint for the purpose**.
- 6 The elections are held, as soon as possible, to fill the vacant posts.

SECRETARIAT OF PARLIAMENT



- 1 Each House of Parliament has separate secretarial staff of its own, though there can be some posts common to both the Houses.
- 2 Their recruitment and service conditions are regulated by **Parliament**.
- 3 The secretariat of each House is headed by a **secretary-general**.
- 4 He is a permanent officer and is **appointed by the presiding officer of the House**.

PARLIAMENT

LEADERS IN PARLIAMENT

LEADER OF THE HOUSE

- 1 Under the Rules of Lok Sabha, the 'Leader of the House' means
 - the **prime minister**, if he is a member of the Lok Sabha, or
 - a **minister who is a member of the Lok Sabha** and is nominated by the prime minister to function as the Leader of the House.

- 2 There is also a 'Leader of the House' in the Rajya Sabha. He is a **minister and a member of the Rajya Sabha** and is nominated by the **Prime Minister** to function as such.

- 3 The leader of the house in either House is an important functionary and exercises direct influence on the conduct of business.

- 4 He can also nominate a deputy leader of the House.

- 5 The same functionary in USA is known as the 'majority leader'.



PARLIAMENT

LEADERS IN PARLIAMENT

LEADER OF THE OPPOSITION

- 1 In each House of Parliament, there is the 'Leader of the Opposition'.
- 2 The leader of the largest Opposition party having not less than one-tenth seats of the total strength of the House is recognised as the leader of the Opposition in that House.
- 3 The leader of the opposition has a significant role to play.



- 4 His main functions are to provide a constructive criticism of the policies of the Government and to provide an alternative Government.
- 5 Thereby, the leader of Opposition in the Lok Sabha and the Rajya Sabha were accorded statutory recognition in 1977.
- 6 They are also entitled to the salary, allowances and other facilities equivalent to that of a cabinet minister.
- 7 It was in 1969 that an official leader of the opposition was recognised for the first time.

ANALYSIS OF QUESTION

Prelims question 2018

Q16. Consider the following statements :

1. In the first Lok Sabha, the single largest party in the opposition was the Swatantra Party.
2. In the Lok Sabha, a “Leader of the Opposition” was recognized for the first time in 1969.
3. In the Lok Sabha, if a party does not have a minimum of 75 members, its leader cannot be recognized as the Leader of the Opposition.

Which of the statements given above is/are correct?

- a. 1 and 3 only
- b. 2 only
- c. 2 and 3 only
- d. 1, 2 and 3

WHY IS READING EVERY LINE OF LAXMIKANTH IMPORTANT FOR UPSC?

- If you analyse this question, there are multiple factoids asked in a single question. However, the question is not too complicated to be solved.
- Concepts of statements 2 and 3 are given in Laxmikanth (look at previous slide).
- Hence, skipping a portion/chapter of Laxmikanth is not advisable. It might cost you in the exams.
- Asked in the context that the Congress is not even entitled to have its leader recognised as leader of the opposition in the Lok Sabha.
- Simple elimination of choices.

PARLIAMENT

LEADERS IN PARLIAMENT

SHADOW CABINET OF BRITAIN

1 The British political system has a unique institution called the “Shadow Cabinet”.

2 It is **formed by the Opposition party** to balance the ruling cabinet and to prepare its members for future ministerial offices.

3 In this shadow cabinet, almost **every member in the ruling cabinet** is ‘shadowed’ by a corresponding member in the opposition cabinet.

4 This shadow cabinet serves as the **“alternate cabinet”**, if there is a change of Government.

5 That is why Ivor Jennings described the leader of Opposition as the **‘alternative Prime Minister’**.

Not to be confused with term of “Kitchen Cabinet”!

PARLIAMENT

LEADERS IN PARLIAMENT

WHIP

- 1 Though the offices of the leader of the House and the leader of the Opposition are not mentioned in the Constitution of India, they are mentioned in the Rules of the House and Parliamentary Statute respectively.
- 2 The office of 'whip', on the other hand, is mentioned neither in the Constitution of India nor in the Rules of the House nor in a Parliamentary Statute.
- 3 It is based on the conventions of the Parliamentary Government.
- 4 Every political party, whether ruling or Opposition has its own whip in the Parliament.
- 5 He is charged with the responsibility of ensuring the attendance of his party members in large numbers and securing their support in favour of or against a particular issue.
- 6 He regulates and monitors their behaviour in the Parliament.
- 7 The members are supposed to follow the directives given by the whip. Otherwise, disciplinary action can be taken.

SESSIONS OF PARLIAMENT

In the next couple of lectures, we will learn about Sessions of Parliament and the various Devices of Parliamentary Proceedings.

Summoning

Adjournment

Adjournment Sine Die

Prorogation

Dissolution

Quorum

Language in Parliament

Lame-duck session

Rights of Ministers & AG

Question Hour

Zero hour

Closure Motion

Privilege Motion

Calling Attention Motion

Adjournment Motion

No-Confidence Motion

Censure Motion

Motion of Thanks

No-Day-Yet-Named Motion

Point of Order

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